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|    |                                                                                                                | <p>ownership of the property must be resolved in the family law proceedings before any sale may be ordered.</p> <p>Trial in the family law case was set for May 5, 2025. It appears the trial began on that date, but the court continued it to June 30, 2026, for more information about the property at issue on this order to show cause.</p> <p>Accordingly, this hearing is <b>CONTINUED</b> as set forth above to allow the family law court to resolve all issues regarding ownership of the property so this court can determine whether it may properly order the sale of the property.</p> <p>Creditor is ordered to give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 6. | <p><b><i>In the Matter of the Assumption of Law Practice of Carlos F. Negrete</i></b></p> <p>2016-00836353</p> | <p>Before the court is the third motion by petitioner State Bar of California (Petitioner) to "Terminate Jurisdiction Over Carlos F. Negrete's Unauthorized Law Practice."</p> <p>The two prior motions were denied without prejudice due to Petitioner's failure to present sufficient evidence to show Petitioner adequately complied with and carried out the court's March 2, 2016 order authorizing Petitioner to assume jurisdiction over Mr. Negrete's law practice. Before denying those prior motions, the court granted Petitioner continuances to present sufficient evidence to show how Petitioner properly carried out the March 2, 2016 order, but Petitioner failed to present sufficient evidence in each instance.</p> <p>Initially, the court also must note Petitioner did not assume jurisdiction over Mr. Negrete's law practice because he was engaged in the unauthorized practice of law as suggested in the title of the current motion. As the court previously noted (see August 14, 2025 Minute Order), Petitioner assumed jurisdiction over Mr. Negrete's law practice pursuant to Business and Professions Code section 6190, et seq., which authorizes the assumption of an attorney's law practice "when an attorney engaged in the practice of law in this state has, for any reason, including but not limited to excessive use of alcohol or drugs, physical or mental illness, or other infirmity or other cause, become incapable of devoting the time and attention to, and providing the quality of service for, his or her law practice which is necessary to protect the interest of a client if there is an unfinished client matter for which no other active licensee of the State Bar, with the consent of the client, has agreed to assume responsibility." Petitioner's application to assume jurisdiction was supported by, inter alia, a declaration from Mr. Negrete explaining he had suffered a number of health issues that prevented him from continuing</p> |

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|   |                                                   | <p>with his practice, and he was forced to move to South Carolina to receive treatment. He stated he consented to the seizure of his law practice, and he explained the efforts he had undertaken to try to wind it down and transfer open cases.</p> <p>With the current motion, Petitioner has made its strongest and most complete showing, and has convinced the court it has collected all the information it reasonably can relating to its performance of its duties and responsibilities under the court's March 2, 2016 order authorizing Petitioner to assume jurisdiction over Mr. Negrete's law practice. Although Petitioner has established it completed several of the tasks it was ordered to do, Petitioner also has demonstrated it is unable to confirm whether it performed all the tasks it was directed to perform pursuant to the court's order. Nonetheless, it is clear the law practice has been wound down and Petitioner has not heard from any former clients of Mr. Negrete for a considerable period of time.</p> <p>As such, the court is inclined to grant the petition, but before doing so, the court must hear from certain decision makers with Petitioner as to Petitioner's compliance with the court's order in this case and what policies and procedures can be implemented to improve such performance in future cases.</p> <p>Accordingly, the hearing on this motion is <b>CONTINUED TO THURSDAY, AUGUST 6, 2026, AT 2:00 P.M., IN DEPARTMENT C23</b>. The court orders either Deputy Chief Trial Counsel Christopher G. Jagard or Assistant Chief Trial Counsel Cindy Chan to appear at the continued hearing (remote appearance is acceptable). Prior to the hearing, the attorney appearing at the hearing is ordered to review the court's March 2, 2016 order authorizing the assumption of jurisdiction over Mr. Negrete's practice and the motions and all supporting papers Petitioner filed on or about September 4, 2024, June 4, 2025, and May 8, 2026. Counsel should be prepared to discuss Petitioner's performance under the March 2, 2016 order in light of the information provided in the above-referenced motion.</p> <p>Petitioner is ordered to give notice of this ruling.</p> |
| 7 | <p><b>Park vs. Miyamoto</b><br/>2023-01364050</p> | <p>Before the court is a motion filed by plaintiff Christine Park (Plaintiff) to strike and/or tax costs of defendants Steven A. Miyamoto, DDS and Fullerton Oral &amp; Maxillofacial Surgery (collectively, Defendants). As set forth below, the motion is <b>GRANTED IN PART</b> and <b>DENIED IN PART</b>, and</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |